



国 外 交 部

特 权 指 令

PRIVILEGED INSTRUCTIONS

Ministry of Foreign Affairs
PEOPLE'S REPUBLIC OF CHINA



Ministry of Foreign Affairs of
the People's Republic of China

Privileged Instructions

Fundamental Principles:

- The South China Sea (SCS) region is an inalienable part of Chinese territory and has been since ancient times.
- Securing the SCS as part of the China is a "core interest" of our nation.

Desired End State(s):

- International recognition of China's sovereignty within the SCS region, as supported by documented history and archeological finds.
- The end of extra-regional nations' interference in the SCS and Southeast Asia
- The maintenance of regional peace and stability
- Conclusion of bilateral agreements, with regional nations whose claims extend into Chinese territory within the SCS, which would allow accommodations for specific joint activities or right of innocent passage.
- The end of all non-Chinese military stationing and naval passage within or through the Chinese portion of the SCS

Principle Negotiation Positions:

- China has indisputable sovereignty over the SCS islands, including Xīshā Qúndǎo [Paracels] and Nánshā Qúndǎo [Spratly], and their adjacent waters, as well as sovereign rights and jurisdiction over the seabed and subsoil under the relevant waters.
- The SCS is an integral part of our strategic waters, and the resources within and beneath are part of our nation's resources.
- Current disputes should be set aside until a later time to allow the conduct of joint development between SCS states under our leadership and control.
- All settlements must be bilateral; however, multilateral talks may be conducted with ASEAN member states (Indonesia, Malaysia, the Philippines, and Vietnam), with the expressed exclusion of the external states (Japan and the United States).

Delegation Instructions

Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Foreign Minister.

GENERAL: Though you are trained in Zhànláng Wàijiāo (Wolf Warrior Diplomacy) you must balance this style with that of a more measured approach. Utilize President Xi's dàguó-wàijiāo (Major Country Diplomacy) by taking a more active role in these discussions. Per President Xi's thoughts on diplomacy (in references): "adhere to the correct role view, emphasize the analysis of the international situation and put yourself in it, and make it clear that China has become the main driving force behind the evolution of the world pattern, and the times and trends are on our side."

And remember that we are “still in a period of important strategic opportunities, and opportunities are more strategic and malleable, the challenge is more complex and global.”

The primacy of our claim is clear. The SCS and Nanhai Zhudao (SCS Islands) - consisting of Dōngshā Qúndǎo (Pratas Islands), Xīshā Qúndǎo, Zhongsha Qúndǎo (Macclesfield Bank area) and Nánshā Qúndǎo - and the internal waters, territorial sea, and contiguous zone, based on Nanhai Zhudao, as well as historic rights in the South China Sea, are based on positions that comply with relevant international law and practice, are clear and consistent, and are well known to the international community.

We must try to maintain our one-on-one policy of dealing with other nations. We chose to resolve disputes bilaterally rather than multilaterally. You may conduct multilateral talks with the ASEAN member states as a way of driving a wedge between those nations and the extra-regional states. In this case, your clear goal is to isolate the smaller regional states away from any external influence or support they may seek in their relations with New Delhi, Tokyo, and Washington. We will accommodate the wishes of the United Nations Special Representative regarding any plenary sessions or any other type of multilateral session that he personally chairs or moderates. In any of these sessions, you should closely adhere to – but may refine – our fundamental principles and our core interests. Continue to maintain that lasting solutions through direct and specifically focused talks between individual nations is the only way to solve issues.

In general, you may offer some movement toward improved relations by increased government-to-government communications at the lower levels. Multilaterally, you may offer the possibility of an agreement on the passage of military vessels through the SCS. This will be in accordance to UNCLOS with Chinese permission, prior notice, and our right of refusal. Always reiterate our positions regarding Xisha and Nansha and the entire scope of the ten-dashed line claim. You may entertain certain bilateral agreements with the Philippines and Vietnam, or other claimants on joint energy exploration or fishing in areas that those nations also claim within our maritime possessions.

The Philippines and Vietnam: Explain to both the Philippines and Vietnam that we desire to negotiate a resolution to our difference at an appropriate time in the future. A multilateral forum is not an appropriate venue and that we are willing to hold bilateral talks. Offer that we are willing to discuss new bilateral agreements on joint resource development. We are willing to establish a “Nansha Joint Resource Development Agency” through which mutual energy development can proceed at an accelerated pace. This would decrease tensions and build confidence between each of our nations.

Malaysia: Kuala Lumpur has taken its role as ASEAN Chair to project a sense of leadership within ASEAN states. They are not representative of ASEAN as ASEAN is not fully represented at these talks. Do not afford them the luxury of speaking for ASEAN. Malaysia does not worry about aggression from us. They have accused the U.S. of provoking us and turning our neighbors against us. Use this entry to persuade Malaysia to work with the Philippines and Vietnam in cooperating with us and not the U.S.

Brunei and Indonesia: We have worked with both to ease the tensions with their claims within the 10-dash line. Utilize this openness to be an example to others on how civilized nations act. Indonesia has its own issues with neighbor states and may be willing to help others to compromise on their claims.

Non-SCS States: Emphasize to India, Japan, and the United States that the situation is strictly regional and is to be solved by regional nations. Their support is not necessary in resolving SCS issues. We are simply upholding our legitimate rights and interests and that we have no intention of acting like an oppressive colonial power. Our policy aim remains that of “Good Neighborliness” under the Five Principles of Peaceful Coexistence. This commits us to a path of peaceful development

through deepening mutually beneficial cooperation to ensure that our neighbors benefit from development. At the same time, we will continue to uphold our national sovereignty, security, and development interests. We remain committed to shelve our differences and conduct joint development as the best long-term method of dealing with SCS issues.

United States: Recognize that the U.S. plays an important role within the world, in general, within certain regions. We support much of their worldview. However, when it comes to our back yard in Southeast Asia, and the SCS in particular, Washington needs to recognize the primacy of our leadership in the region. The U.S. should understand that we support the best interests of all Asian nations and that we desire regional peace, stability, and security. Offer that they can continue with the agreements they already have with SEA nations, most of which we see as constructive, but there is no need for additional efforts than those agreements already in place.

It is more urgent that Washington and Beijing increase communication and cooperation to resolve all issues and avoid strategic friction. Washington must understand that we must address all territorial issues in a comprehensive manner, whether they be the SCS, Taiwan, or the Diaoyu Islands, as all these issues are linked. Given that our nations are the world's largest economies, we should concentrate our mutual efforts on deepening communication and expanding cooperation for each nation's core interests as part of addressing the strategic distrust that exists between us. Leave the U.S. delegation with the sentiment that the Asia-Pacific region can and should be a grand stage for China-U.S. cooperation.

Japan: Tokyo should understand that we are acting in the best interests of the SCS region. Our two nations should concentrate on the continued expansion of economic cooperation, and that we welcome their continued partnership within the greater Asia-Pacific region. We should also build on the recent peaceful de-escalation of tensions over the Diaoyu (Senkaku) Islands as a launching point for further bilateral discussions on proper conflict management. Assure the Japanese delegation that we take the issues of freedom of navigation and security of shipping lanes very seriously. As we demonstrated during our recent joint efforts against piracy near the Strait of Malacca.

However, our mutual history matters and continues to affect our relations. The lack of proper contrition by Japanese leaders and revisionist Japanese histories concerning WWII atrocities against Chinese citizens (1937 Nanking Massacre, use of slave labor and Comfort Women) continues to cause concern for all Chinese citizens. Japanese Prime Minister Suga sent offerings to the Yasukuni Shrine in October 2020. This shrine honors Japan's war dead, including convicted war criminals. This gesture is extremely dissatisfying, and Japan must learn from history and reflect on their past history of aggression to win the trust of its Asian neighbors.

India: We feel that India's "Look East" policy as invasive and unproductive. Their repeated naval deployments to the SCS just add to the possibility of a miscalculation amongst nations. This is not their backyard and thus have no say in matters regarding conflicts and issues in the SCS. While we value the good relations between our two nations, especially in terms of economic growth, we should urge the Indian government to refrain from further involvement in the SEA, as it only serves to negatively complicate already complex regional relationships.

NOTE: China and Chinese leaders do not think of territory or territorial integrity in terms of geographically defined boundaries, lines or borders, such as those found in UNCLOS provisions, but rather they define sovereignty through the concept of "span of influence," meaning peoples, not territory, an ambiguous concept at best. This may explain why China maintains a ten-dashed line claim that clearly has no definable relation to the areas they would be awarded or denied under the UNCLOS provisions. The line clearly does not consider the territorial definitions or limitations found in UNCLOS, such as exclusive economic zones, islands, continental shelves, etc., despite Beijing being a signatory.